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[redacted]

Institute of Public Affairs

21 October 2025

Committee Secretary
Joint Standing Committee on Electoral Matters
PO Box 6021
Parliament House
Canberra ACT 2600

Dear Committee Secretary

Submission to the Joint Standing Committee on Electoral Matters inquiry into the conduct of the 2025 federal election

The purpose of this letter is to share research and analysis conducted by the Institute of Public Affairs ("the IPA") with the Joint Standing Committee on Electoral Matters ("the Committee") as it inquires into all aspects of the conduct of the 2025 federal election and related matters.

The terms of reference require the Committee to examine, among other issues:

- assessment and review of the purported increase in incidents of aggressive conduct, deliberate obstruction, and intimidating behaviour towards voters, political participants, volunteers, and Australian Electoral Commission (AEC) officials;
- potential reform of safety and security arrangements, including consideration of the powers, processes, and capacity of the AEC to manage and address increasingly threatening or disruptive behaviour;
- the suitability and potential reform of measures to ensure universal voter access, including polling booth availability and location, early voting, remote polling, and postal voting arrangements; and
- the suitability of the current authorisation framework and requirements, having regard to the evolution of communication methods and technology.

The Special Minister of State has also asked the Committee to consider the interaction with the following:

- the implementation and operation of the electoral reform passed by the 47th Parliament, particularly regarding the use of money or capital in the most recent election;
- reforms to address the ongoing threats of interference in our electoral system, both foreign and domestic; and
- the composition of the Parliament as a whole, including: the length of the parliamentary term; the potential for fixed terms; and the number of elected representatives relative to the growth in population and the electorate.

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The IPA welcomes this opportunity to provide comment, particularly in relation to:

1. The size of Parliament;
2. The effect of preferential voting on the composition of parliament; and
3. Proposals for fixed parliamentary terms.

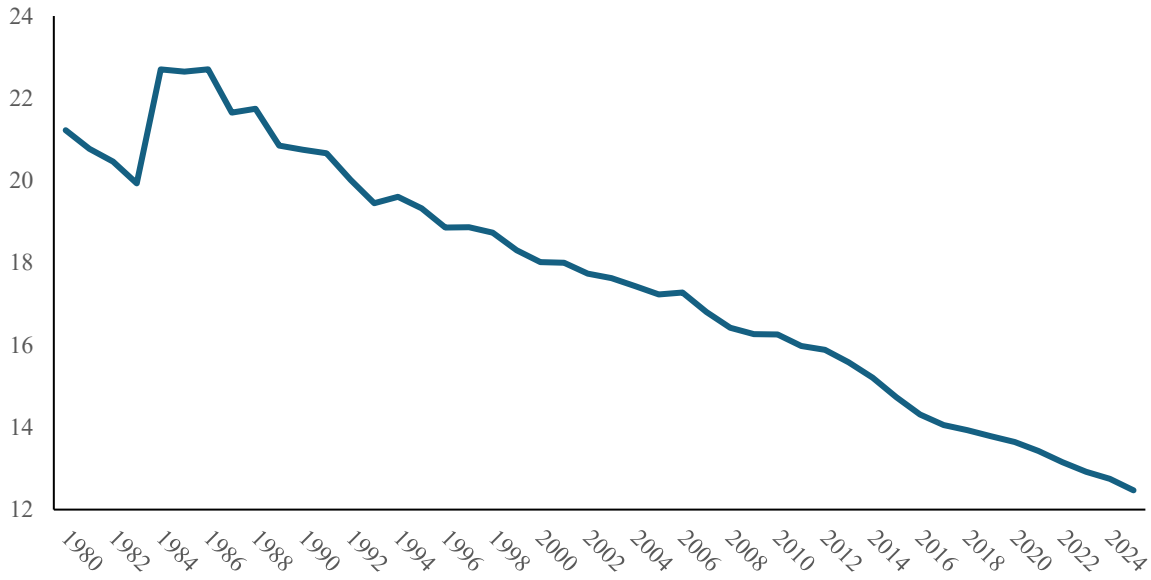
1. Increasing Representation

The House of Representatives currently contains 150 electorates, and the Senate is comprised of 76 senators. With Australia's population now exceeding 27 million, electorates are becoming excessively populous and geographically large.

The number of parliamentarians per 1,000 Australian voters has been in steady decline for four decades. In 1980 there were around 21 parliamentarians per one million voters. By 2025, that figure had fallen to just over 12 parliamentarians per one million voters.[1] The last substantial increase in the number of representatives occurred in 1984 when the number of House of Representatives increased from 125 members to 148 members and the number of senators increased from 64 to 76.

While the number of enrolled voters has grown substantially with population growth, parliamentary representation has not expanded at the same pace. This decline means each MP and senator today represents far more people than their predecessors did.

Figure 1: Number of parliamentarians per one million Australian voters



Source: Australian Electoral Commission

This has significant consequences for the health of our democracy.

[1] Australian Electoral Commission, *Annual Report* (Canberra, Commonwealth of Australia).

In practice, this reduces the accessibility and accountability of elected representatives, as they are required to serve electorates that are much larger and more diverse. Members of Parliament are increasingly distant from the communities they represent, with each electorate encompassing a growing number of people and, in regional areas, vast tracts of land. This diminishes the ability of MPs to engage with their constituents in a meaningful and consistent way.

It also weakens the effectiveness of parliament itself, as a relatively small number of representatives is expected to scrutinise an ever-growing executive government and an increasingly complex legislative agenda. If parliamentary representation had kept pace with population growth, Australians today would enjoy more direct and responsive engagement with their representatives, rather than the diminished ratio that has emerged over the past forty years.

To address these challenges, the IPA recommends that the Committee consider increasing the size of the House of Representatives to 180 members. This reform would strengthen the voter-MP relationship, enhance responsiveness, and ensure that parliament remains a true reflection of the views of the Australian people.

A larger parliament would also likely result in more debate. Currently, a large share of Members of Parliament in both the government and opposition are in the cabinet or shadow cabinet. This, through the norms of cabinet solidarity, limits the number of MPs who will engage in debate, even if this goes against the official policy of the government or opposition. The UK, for instance, has a strong tradition of backbenchers speaking out, at times in defiance of party leadership. This has the effect of leading to more debate and better representation of the disparate views of the Australian public.

The IPA also recommends increasing the number of Senators to 90. Specifically, the number of Senators in each territory should be increased from two to three, and the number of Senators in each state should be increased from 12 to 14. A larger Senate would restore the representational balance intended under federation, strengthen the ability of regional and minority voices to be heard, and reinforce the chamber's role as a genuine house of review.

Alternatively, rather than increasing the representation of all states in the Senate, the Committee should consider the creation of a new state in Northern Queensland. This reform would allow each of the seven states to maintain 12 Senators, while the two territories would each be allocated three Senators. A Northern Queensland state would strengthen federalism, rebalance representation, and ensure that regional Australians continue to have a strong and distinct voice in Canberra.

2. Preference Deals and the Composition of Parliament

Australia's system of preferential voting (PV) is unique among established democracies. Outside of Australia, PV is used only to elect Papua New Guinea's National Parliament, the

ceremonial Irish presidency, and in some U.S. state elections (Alaska and Maine).[2] The Anglosphere beyond Australia overwhelmingly relies on first past the post (FPP).

Proponents often downplay the significance of PV by noting that winners generally also hold the largest share of first preferences. However, this is not always true. At the 2022 election, every Teal candidate who entered parliament did so despite receiving fewer first preferences than their Liberal rivals.[3] Their election was only secured through preference distributions.

The effect of preferences on the outcome of federal elections is far from marginal. At the 3 May 2025 election, fourteen seats, representing around 10 per cent of all electorates, would have seen a different candidate elected had Australia used a FPP system.

The Coalition was most significantly affected by the distribution of preferences, forfeiting 12 seats (11 Liberals, one Nationals, and one Country Liberal). In addition, both Greens leader Adam Bandt and Labor's candidate for Fowler, Tu Le, were not elected despite receiving the most primary votes.

By contrast, Labor won nine seats directly due to preferences, giving it a net gain of eight compared with a FPP result. Five independents were also elected from a position of second place, while the Greens effectively broke even.

There were only 11 seats at the May 2025 election that were won outright on primary votes, with candidates receiving more than 50 per cent of first preferences and therefore avoiding any distribution of preferences. This means that 139 of the 150 seats in the House of Representatives were ultimately decided on preferences.

Polling commissioned by the IPA found that 56 per cent of Australian voters do not carefully consider their preference allocations, instead simply following the how-to-vote cards handed to them at polling booths.[4] As a result, the outcome of federal elections is being determined not by the deliberate democratic choices of voters, but by preference-swapping arrangements and publications issued by political parties.

This reliance on party instructions reflects a deeper problem, low voter engagement. When Australians know that the outcome will be shaped by a complex web of preferences rather than the straightforward expression of their first choice, many feel their vote is disconnected from the final result. Compulsory full preferential voting entrenches this disengagement by forcing voters to allocate preferences to candidates they neither know nor support, creating a sense that the election outcome is being engineered through preference deals rather than voter conviction. A genuine concern for political disengagement points to the need for reform. Compulsory full preferential voting should be abolished in favour of optional preferential voting, which would allow Australians to support only those candidates they truly endorse.

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[2] William Coleman, *Twelve Ideas For Reinvigorating Australian Democracy* (Institute of Public Affairs Research Report, March 2025).

[3] Ibid.

[4] Morgan Begg, *Poll: Attitudes Towards Democracy In Australia* (Institute of Public Affairs Research Document, March 2025).

The 2022 election demonstrated the same effect. Preferences played a decisive role in shaping the 47th parliament. Under a FPP system, Labor would have fallen short of a majority with 72 seats instead of the 77 it won. The Coalition would also have secured 72 seats, and the crossbench would have numbered just seven rather than the record 16 actually elected.

These results highlight how preferential voting systematically alters electoral outcomes, often delivering victory to candidates who do not win the largest share of first preferences. This raises profound questions about democratic legitimacy. Compulsory full preferential voting requires Australians not only to indicate support for their chosen candidate, but to allocate preferences to candidates and parties they do not support and may judge equally unworthy. This infringes the basic principle that a voter should be free to withhold support altogether. Such a preferential voting system that can transform minority support into parliamentary majorities.

The IPA therefore recommends that Australia move to optional preferential voting, as used in New South Wales state elections, ensuring that voters can indicate support for one candidate without being compelled to provide preferences to others.

3. Fixed Terms

The IPA strongly rejects any proposal for fixed parliamentary terms as it would reduce accountability and shield politicians from scrutiny. Proponents in favour of fixed terms often argue that fixing election dates would invigorate political competition by abolishing the privilege for the Prime Minister to call elections at a time most favourable to the incumbent government, yet the nature of parliamentary government makes fixed terms vulnerable to anti-democratic outcomes. Firstly, a popular minority government reliant on an obstinate crossbench may be prevented from going to the people to obtain a mandate, because neither the opposition nor the crossbench is willing to bring on a no-confidence vote. Secondly, a government with broad electoral support may face a hostile majority in parliament that blocks its program but simultaneously refuses to trigger an election, effectively stymieing the will of the people.

Such circumstances are not theoretical. In 2019 the United Kingdom experienced precisely this breakdown when a parliamentary majority hostile to Boris Johnson's government blocked both his key policies and his attempt to seek a renewed mandate, creating months of paralysis until the fixed-term legislation was suspended.[5] Fixed terms, far from strengthening democracy, risk entrenching governments that have lost legitimacy or parliaments that are manifestly unrepresentative. At a time when Australians already feel distant from the political class, the answer is not fewer elections and less accountability, but more opportunities for voters to exercise their democratic power.

The IPA recommends that the Prime Minister should continue to decide the date of the election of the House of Representatives, whilst consideration should be given for the date of

[5] William Coleman, *Twelve Ideas For Reinvigorating Australian Democracy* (Institute of Public Affairs Research Report, March 2025).

the Senate elections to be fixed by the Constitution and held separately from the House elections.

Holding Senate elections separately from House elections could strengthen the Senate's role as an independent house of review. When conducted concurrently, Senate contests are frequently subordinated to the dynamics of the House of Representatives campaign, with voters tending to regard their Senate preferences as secondary or perfunctory. Separate elections would allow voters to focus on Senate candidates and issues in their own right, reduce the "coattail" effect of lower house results, and give minor parties and independents a more genuine opportunity to compete. Mid-term Senate elections could also operate as a check on government, providing Australians the opportunity to endorse or rebuke the government's policies without changing the government itself. This would enhance scrutiny, restore the Senate's federalist purpose as a true states' house, and create more opportunities for citizens to engage in democratic decision-making. Senators are elected to fixed six-year terms, and this should be retained.

We wish to thank the committee for the opportunity to provide this submission. Please do not hesitate to contact me at [redacted] for further consultation or discussion.

Kind regards,

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